

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA and
DIANE C. DESOUSA AS EXECUTOR OF
THE ESTATE OF THOMAS E. DESOUSA,
Plaintiffs,

-against-

RICHARD A. CALVAGNO II and PATRICK J.
KARCHER,
Defendants.

Index No. 600371/2021

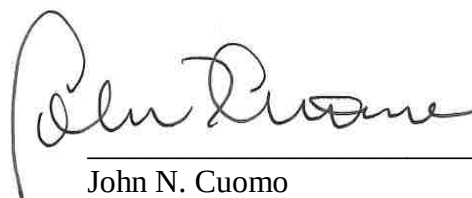
AFFIRMATION OF SERVICE

Motion Seq. No 7

John N. Cuomo, an attorney duly licensed to practice law in the State of New York, affirms
under penalties of perjury as follows:

1. I represent Plaintiffs Diane C. DeSousa ("Mrs. DeSousa") and Diane C. DeSousa as Executor of the Estate of Thomas E. DeSousa (collectively "Plaintiffs") in the above-captioned action.
2. The Notice of motion and all supporting papers regarding this motion, including, but not limited to, affirmations and exhibits were served upon all parties via NYSCEF, except for Defendant Patrick Karcher.
3. Defendant Patrick Karcher, who is appearing in this action pro se, and was served on April 3, 2026 by United Parcel Service ("UPS") overnight delivery service. On that date, the undersigned had deposited all such papers in a properly addressed, postage paid envelope for overnight delivery to Defendant Patrick Karcher. **See attached.**

Dated: Commack, New York
May 4, 2026



John N. Cuomo
Attorney for Plaintiffs
11 Fern Drive
Commack, NY 11725
631-403-0515

Parcel Shipping Order (PSO) Terms and Conditions: Page 1 of 2

The UPS Store #4885

SHIP DATE Fri 03 Apr 2026	EXPECTED DELIVERY Sat 04 Apr 2026	SHIPMENT INFORMATION UPS Next Day Res: 1 package Total Declared Value: \$100 USD	DESCRIPTION OF GOODS DOCUMENTS
SENDER JOHN CUOMO 11 FERN DRIVE Commack, NY 11725 Tel: (631) 864-2748 JOHNCUOMO@GMAIL.COM	RECIPIENT PATRICK KARCHER 23 UDELL WAY EAST NORTHPORT, NY 11731-3713	PKG TRACKING NUMBER 1 1Z8RW2714483043000	PACKED DECL VAL \$100.00
		Packed By: S = Store C = Customer	

Subject to these terms and conditions, this The UPS Store® center ("We", "Us", or "Our") will receive, forward and/or pack parcels for you the customer ("You" or "Your"). The carrier for Your parcel(s) accepted by Us will be UPS® ("Carrier"). The Carrier may refuse to ship Your parcel(s) accepted by Us. You represent Your true name and address appear as sender above.

We do not accept hazardous material, illegal items, or articles of unusual value, including but not limited to cash. In addition, the Carrier's tariff, service guide, or terms and conditions ("Carrier's Terms and Conditions") may specify other restricted items. Parcels containing "food" (as defined in section 201 (f) of the Federal Food, Drug, and Cosmetic Act), will be accepted for transportation only according to the applicable terms and conditions in the Carrier's Terms and Conditions in effect on the date of shipment.

We do not transport Your parcel(s). The Carrier transports Your parcel(s) subject to the UPS/Tariff Terms and Conditions of Service ("UPS Terms") in effect on the date of shipment, which are available at www.ups.com/terms. The Carrier's Terms and Conditions set forth the Carrier's rights, responsibilities, and limitations of liability with respect to the transportation of Your parcel(s) and are hereby incorporated in full into this Parcel Shipping Order ("PSO"). The UPS Terms contain a MANDATORY BINDING ARBITRATION CLAUSE AND CLASS ACTION WAIVER, which apply to any controversy or claim, whether at law or equity, arising out of or relating to provision of services by UPS, regardless of the date of accrual of such dispute, except for claims that may be filed in courts of limited jurisdiction such as small claims, justice of the peace, magistrate court, and similar courts with monetary limits on their jurisdictions over civil disputes. You agree that the MANDATORY BINDING ARBITRATION CLAUSE AND CLASS ACTION WAIVER in the UPS Terms also applies to any controversy or claim against Us arising out of or relating to the provision of goods or services by UPS or Us.

We are Your agent for receiving and forwarding Your parcel(s) to the Carrier. We are not the Carrier's agent. You agree that We will be deemed the shipper of Your parcel(s) with the Carrier and that You are not the shipper under the Carrier's Terms and Conditions. You therefore have no rights directly against the Carrier. Any rights You may have to recover damages or other compensation with respect to the transportation of Your parcel(s) (including for loss, damage, or the Carrier's failure to timely deliver) are limited to those rights described in the Carrier's Terms and Conditions or in this PSO. You agree that We, as the shipper of Your parcel(s), are solely entitled to any discounts or adjustments to the charges that We pay the Carrier for transporting Your parcel(s).

Except as expressly set forth in this PSO, We assume no liability for the delivery of Your parcel(s) or for loss or damage by any cause to the parcel(s) or their contents that occurs after We tender Your parcel(s) to the Carrier. The Carrier's driver may deliver Your parcel(s) without a signature unless You request a signature on delivery and pay any applicable charge. You agree that the Carrier is not liable for loss or damage occurring after the delivery of Your parcel(s). You also agree to all terms and conditions in this PSO, including all terms and conditions related to Your participation in the optional Declared Value Program.

Any statement by Us regarding a probable date and (if applicable) time of delivery is only an estimate and it is not warranted in any manner. We are not liable for any consequential, indirect, special, incidental, or punitive damages, or any loss or damage resulting from delays in shipping or delivery. Our responsibility for damage to items caused by improper packing by Us is limited to any applicable Declared Value Program or other program that We may offer and for which You have paid any applicable charge.

Limitations of Liability and Exceptions. Our liability and the Carrier's liability for loss or damage to Your parcel(s) is strictly limited to the amounts set forth in this PSO and the Carrier's Terms and Conditions (in the event of conflict, the Carrier's Terms and Conditions govern the Carrier's liability for loss or damage). **Liability for loss or damage is limited to Your actual damages or \$100 per parcel, whichever is less, unless You declare a higher value and pay the applicable charge for a higher authorized value (under the Declared Value Program).** We and the Carrier are not liable or responsible for items of unusual value, precious metals, negotiable instruments, or items prohibited from shipment, or for which the Carrier's liability is excluded, under the Carrier's Terms and Conditions. Additional terms and conditions governing loss or damage claims can be found in the Carrier's Terms and Conditions.

Declared Value Program. UPS offers a declared value program providing declared value limits for loss or damage, subject to terms and conditions (including monetary limits) ("Declared Value Program"). The declared value product will be available only if You have complied with all terms and conditions of the applicable Declared Value Program. We surcharge the cost of this product. If You elect to participate in the Declared Value Program and You pay any applicable charge, We will declare value for Your eligible parcel(s) through the Carrier. You expressly acknowledge that the value of each parcel does not exceed the amount You list as the "Declared Value" and that is stated on the shipment receipt. **If You do not list a "Declared Value" amount, You agree that the value of each parcel does not exceed \$100. If You do not declare value above \$100 and pay an additional charge for a parcel containing items of greater value than \$100, You will not be entitled to recover more than \$100 for loss or damage to the items in that parcel.** The Carrier's Terms and Conditions, including monetary limits, for its Declared Value Program are located in the Carrier's Terms and Conditions.

Filing Claims. If You or the consignee has a claim for loss or damage to Your parcel(s), You agree to submit Your claim through Us, except as provided herein. If You make Your claim through Us, We will submit a claim to the Carrier as the shipper of parcels, and We will remit to You any recovery on the claim paid to Us by the Carrier for Your parcel(s). In the event that UPS Capital accepts claims in the UPS Capital Claims Portal, however, You agree to submit Your claim electronically through the UPS Capital Claims Portal. Notwithstanding the foregoing, at Our election, and without obligating Us to do so, where available, (i) You may request that We submit a claim to the Carrier through the UPS Capital Claims Portal on Your behalf, and, (ii) You grant Us the authority to initiate a claim to the Carrier through the UPS Capital Claims Portal on Your behalf. The UPS Capital Claims Portal is here at <https://online.upsclaims.com/tccp>. You hereby agree to be bound by the **Terms and Conditions of Service** in effect on the date of shipment, which are available at <https://online.upsclaims.com/tccp>, for any claims You submit or have been submitted on Your behalf via the UPS Capital Claims Portal.

You expressly agree that We have no liability if any claim is denied or paid only in part by the Carrier or other declared value provider. In the event You make a Guaranteed Service Refund (GSR) request to UPS, You agree to provide to UPS (and hereby authorize Us to provide to UPS) Your name and address to be used by UPS to process the request.

Any and all claims must be filed within the Carrier's required time frame as set forth in the Carrier's Terms and Conditions. Claims not made within the prescribed time frame are waived and will not be paid. For all damage claims, the original packaging materials must be made available for the Carrier's inspection prior to reshipment. All claims for loss or damage must be supported by the shipping documents, including but not limited to this PSO and a copy of the shipment receipt, and proof of the value of the lost or damaged items for any declaration of value over \$100.

Filing a UPS Guaranteed Service Refund (GSR) request. If UPS is the Carrier for Your parcel(s) and if You believe any parcel is eligible for a refund under the UPS Service Guarantee as set forth in the UPS Terms, You must contact Us at the location that shipped the parcel(s) within 15 calendar days of the date of scheduled delivery. If You do not contact Us within the prescribed time frame, any claim to a refund under the UPS Service Guarantee is waived and will not be paid.

We may be an independently owned and operated franchisee of The UPS Store, Inc., in which case, (i) We are solely responsible for all aspects of Our operations (ii) We are the exclusive employer of employees of Our business, and (iii) You acknowledge and agree that The UPS Store, Inc. is not liable for any of Our acts or omissions and is not the employer or joint employer of the employees of Our business. However, certain The UPS Store locations may be owned or operated by The UPS Store, Inc. or its subsidiary. In such limited cases only, the terms We, Us, Our, as used herein refer to The UPS Store, Inc. or its subsidiary, as applicable, and not to an unaffiliated franchisee.

This PSO constitutes the entire agreement between You and Us, and supersedes all prior, subsequent and contemporaneous agreements, understandings, and representations, written or oral, relating to the subject matter hereof.

By signing below, You acknowledge that (i) You confirm the Ship To address is accurate for each parcel (ii) You confirm the Declared Value for each parcel, if any, is correct (iii) You have read and reviewed the terms and conditions described above in their entirety, (iv) You agree to be bound by all such terms and conditions, (v) in the event that a claim is filed in connection with Your parcel (by Us, You, or anyone else permitted to file a claim), You hereby agree to be bound by all **Terms and Conditions of Service** of the UPS Capital Claims Portal <https://online.upsclaims.com/tccp>, and (vi) by so

Parcel Shipping Order (PSO) Terms and Conditions: Page 2 of 2

The UPS Store #4885

SENDER	SHIPMENT TRACKING NUMBER	PACKAGES	TOTAL DECLARED VALUE
	1Z8RW2714483043000	1	\$100 USD

signing, this PSO constitutes binding and enforceable obligations of You. YOU FURTHER ACKNOWLEDGE AND AGREE that, except as expressly set forth in the UPS Terms, any claims against Us or UPS (including its affiliates) arising out of or relating to provision of goods or service by UPS or Us are subject to individual, mandatory binding arbitration in accordance with the dispute resolution provisions of UPS Terms available at www.ups.com/terms (even as to packages not shipped with UPS).

Privacy Notice. Customer acknowledges that the relevant The UPS Store® Center will handle Customer's personal information in accordance with its privacy notice at <https://locations.theupsstore.com/privacy-notice>.



CUSTOMER SIGNATURE

Fri 3 Apr 2026

TRANSACTION DATE